



## CHAPTER xxx.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Great North of Scotland Railway. A.D. 1915.

[24th June 1915.]

**W**HEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.  
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation  
of Order in  
schedule.

2. This Act may be cited as the Great North of Scotland Railway Order Confirmation Act 1915. Short title.



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*Order Confirmation Act, 1915.*

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S C H E D U L E.

GREAT NORTH OF SCOTLAND RAILWAY.

*Provisional Order to authorise the Great North of Scotland Railway Company to execute works and acquire lands and for other purposes.*

WHEREAS the Great North of Scotland Railway Company (in this Order called "the Company") were incorporated by the Great North of Scotland Railway Act 1846 and the powers of that Act were from time to time extended by other Acts which Acts were consolidated and amended by the Great North of Scotland Railway Consolidation Act 1859 and that Act has been amended and extended by other Acts passed and by Orders confirmed by Parliament since the passing thereof:

And whereas it is expedient that the Company should be authorised to make and maintain the widening and improvement of railway and other works hereinafter described and to purchase and acquire lands and servitudes for the purposes of the said works and for the general purposes of their undertaking:

And whereas the Company have purchased certain lands in the city parish of Aberdeen with a hotel know as the Station Hotel erected thereon and it is expedient that the said purchase should be confirmed and that the Company should be authorised to hold and dispose of the said lands and the buildings thereon for the general purposes of their undertaking and to furnish and use as a hotel and from time to time to alter and adapt the said Station Hotel:

And whereas by the Aberdeen Joint Passenger Station Act 1899 the Company were authorised to reconstruct and extend the bridge carrying Fullerton Road over the railway of the Company at Kittybrewster in the city parish of Aberdeen and the city and Royal burgh of Aberdeen:

And whereas by subsequent Orders the time limited by the said Aberdeen Joint Passenger Station Act 1899 for the recon-



struction and extension of the said bridge was extended and the powers for such reconstruction and extension were revived but such powers expired on the sixteenth day of August one thousand nine hundred and thirteen: A.D. 1915.

And whereas the Company have not exercised their said powers but are desirous of doing so and it is expedient that the said powers should be revived as by this Order provided:

And whereas it is expedient that the Company should be empowered to apply their funds towards the purposes of this Order and the general purposes of their undertaking and for all or any of such purposes to raise additional capital:

And whereas in order to facilitate the raising of the additional capital or moneys authorised by this Order to be raised it is expedient that the Company should be authorised to raise the same or any part thereof by the creation and issue of a special class of debenture stock having the rights privileges and incidents referred to in this Order:

And whereas immediately before the passing of the Great North of Scotland Railway Act 1897 the capital of the Company comprised (in addition to certain lien stock guaranteed stock and preference stocks) ordinary stock deferred ordinary stock No. 1 and deferred ordinary stock No. 2:

And whereas under powers conferred by the said Great North of Scotland Railway Act 1897 the Company converted into Great North of Scotland Railway preferred converted ordinary stock and Great North of Scotland Railway deferred converted ordinary stock the previously existing ordinary stock of the Company and created and issued preferred ordinary stock and deferred ordinary stock each to the nominal amount of the said previously existing ordinary stock and also merged the said deferred ordinary stock No. 1 into and with the deferred converted ordinary stock created under the said Act:

And whereas in consequence of such merger as last aforesaid the amount of the deferred converted ordinary stock of the Company now outstanding exceeds the amount of the preferred converted ordinary stock of the Company by one hundred and two thousand eight hundred and twenty-two pounds being the nominal amount of the said deferred ordinary stock No. 1 and it is expedient that with a view to making equal the aggregate amounts of the preferred converted ordinary stock and the



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A.D. 1915.      deferred converted ordinary stock of the Company the Company  
----- should be authorised to create and issue further preferred  
converted ordinary stock as by this Order authorised:

And whereas it is expedient that the Company should also be empowered to raise by the issue of redeemable shares or stock the whole or any part of any capital or moneys which they may for the time being be authorised to raise by the issue of preference capital or of debenture stock and to issue warrants or certificates transferable by delivery for any stock shares or debenture stock of the Company already issued or to be issued and that the provisions contained in this Order with respect to such warrants or certificates should be enacted:

And whereas the Company have from time to time purchased lands in consideration of the payment of annual feu duties and ground annuals the capitalised value of which computed at twenty years' purchase thereof amounts in the aggregate to sixty-two thousand five hundred pounds or thereabouts and it is expedient that in respect thereof there should be created and the Company should be empowered to issue debenture stock to an amount equivalent to the said capitalised value:

And whereas it is expedient that the other provisions hereinafter contained should be made:

And whereas plans and sections showing the lines and levels of the widening and improvement of railway and other works authorised by this Order and the lands to be taken for the purposes thereof and plans of the additional lands authorised to be taken or held under the powers of this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of all such lands were duly deposited with the principal sheriff clerk of the county of Aberdeen and the said documents are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows:—



PART I.

A.D. 1915.

INTRODUCTORY.

1. This Order may for all purposes be cited as the Great Short title.  
 North of Scotland Railway Order 1915.

2. This Order is divided into Parts as follows:—

Order  
divided into  
Parts.

Part I.—Introductory.

Part II.—Construction of Works.

Part III.—Powers with reference to Lands.

Part IV.—Financial Provisions.

Part V.—Miscellaneous Provisions.

3. The following Acts and Parts of an Act are (except where the same are expressly varied by or are inconsistent with the provisions of this Order) incorporated with and form part of Parts II. and III. of this Order (namely):—

Incorpora-  
tion of  
general Acts.

The Lands Clauses Acts ;

The Railways Clauses Consolidation (Scotland) Act 1845 ;  
 and

Part I. (Construction of a Railway) and Part II. (Extension of Time) of the Railways Clauses Act 1863 :

Provided that in construing sections 7 8 and 9 of the Railways Clauses Consolidation (Scotland) Act 1845 the word “schoolmasters” shall mean clerks of parish councils or persons acting as such clerks.

4. The clauses and provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to—

Extending  
certain pro-  
visions of  
Companies  
Clauses  
Acts.

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ;



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The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and also Parts I. II. and III. of the Companies Clauses Act 1863 relating respectively to the cancellation and surrender of shares to additional capital and to debenture stock as amended by subsequent Acts are (except where expressly varied by this Order) incorporated with and form part of Part IV. of this Order and shall so far as applicable apply to the Company and to the capital by this Order authorised to be raised.

Interpretation.

5.—(1) In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In and for the purposes of this Order—

The expression “the Company” means the Great North of Scotland Railway Company;

The expression “the widening” means the widening and improvement of railway and the works connected therewith or incidental thereto by this Order authorised.

## PART II.

### CONSTRUCTION OF WORKS.

Power to Company to make widening &c. of railway.

6. Subject to the provisions of this Order the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the widening of railway (including in such widening the altering and improving of and the laying down of additional lines of rails upon such railway) hereinafter described with all proper stations junctions lines of rail sidings approaches roads works and conveniences connected therewith respectively (that is to say):—

A widening and improvement of the Formartine and Buchan Railway of the Company partly on the east and partly on the west side thereof wholly in the county of



Aberdeen commencing in the parish of Dyce by a junction with the said railway near the Dyce station of the Company and terminating in the parish and burgh of Ellon at or near the bridge carrying the said railway over the public road leading from Ellon to Methlick. A.D. 1915.

7. Subject to the provisions in the Railways Clauses Consolidation (Scotland) Act 1845 and in Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of the widening carry the same with a single line only whilst the widening shall consist of a single line and afterwards with a double line only across and on the level of the road numbered on the deposited plans 20 in the parish of Udney. Power to cross certain roads on the level.

8. The Company may make the arches of the bridges for carrying the widening over any public roads of any heights and spans not less than the heights and spans of the bridges carrying the existing railway over such roads respectively. Height and span of bridges.

9. The Company may make the roadway over the bridges by which any public roads will be carried over the widening of such width between the fences thereof as the Company think fit not being less than the width of the roadway over the bridges by which such roads are respectively carried over the existing railway. Width of roadways over bridges.

10. The Company in constructing the widening may deviate from the lines thereof shown on the deposited plans to the extent of the limits of deviation marked on such plans respectively and may deviate from the levels thereof shown on the deposited sections to any extent not exceeding five feet upward or downward. Power to deviate in construction of widening.

11. The widening shall for all purposes form part of the undertaking of the Company. Tolls on widening.

12.—(1) The powers of reconstructing and extending the bridge carrying Fullerton Road over the railway of the Company at Kittybrewster in the city parish of Aberdeen and the city and Royal burgh of Aberdeen conferred upon the Company by the Aberdeen Joint Passenger Station Act 1899 are hereby revived and continued and may subject to the provisions of this Order be exercised by the Company at any time during five Revival of powers for reconstruction and extension of bridge at Kittybrewster.



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A.D. 1915.      years from the passing of the Act confirming this Order on the  
— expiration of which period the powers hereby revived shall cease  
to be exercised except as to so much thereof as shall then be  
completed.

(2) Section 6 (For protection of corporation of Aberdeen) of  
the Great North of Scotland Railway Order 1909 shall extend and  
apply to and with respect to the exercise by the Company of the  
said powers as revived and continued by this section as if that  
section had been in terms re-enacted in this Order Provided  
that the said section shall be read and have effect as if the first  
day of January one thousand nine hundred and thirteen had  
been referred to in sub-section (4) thereof instead of the first  
day of January one thousand nine hundred and ten.

PART III.

POWERS WITH REFERENCE TO LANDS.

Power to  
Company to  
purchase  
lands deli-  
neated on  
deposited  
plans.

13. Subject to the provisions of this Order the Company may  
enter upon take use and purchase compulsorily or by agreement  
for the construction of the widening and for the general pur-  
poses of their undertaking all or any of the lands delineated on  
the deposited plans and described in the deposited book of  
reference as intended to be taken or used for the purposes of  
the widening and may hold and use for all or any of the said  
purposes such of the said lands as have already been purchased  
or acquired by or on behalf of the Company and the same  
shall be deemed to be lands acquired compulsorily under the  
powers of this Order.

Power to  
Company to  
purchase  
additional  
lands.

14. Subject to the provisions of this Order the Company in  
addition to the other lands which they are by this Order  
authorised to acquire may enter upon take use and purchase  
compulsorily or by agreement for the purpose of additional  
sidings buildings and works and for the general purposes of  
their undertaking the lands hereinafter described which are  
delineated on the deposited plans and described in the deposited  
book of reference (that is to say):—

(A) Lands in the city parish of Aberdeen in the city and  
county of Aberdeen situate on the east side of and  
adjoining the railway of the Company;

(B) Lands in the said city parish city and county situate on  
the west side of and adjoining the railway of the  
Company:



Provided that the Company shall convey to the lord provost magistrates and town council of the said city of Aberdeen (hereinafter referred to as "the Corporation") out of the lands authorised to be acquired by the Company under the provisions of this section to the west of their railway and numbered 1 on the deposited plans such area or areas of land as may be necessary for the purpose of widening Fullerton Road mentioned in section 4 sub-section (6) of the Great North of Scotland Railway Order 1909 in addition to the area or areas to the east of their railway to be conveyed to the Corporation under that sub-section the Corporation paying to the Company for such additional area or areas of land a price per square yard proportionate to the price including the legal and other expenses of acquisition that may be paid by the Company for the lands so acquired. A.D. 1915. —

15. The Company may hold and may use and appropriate for the general purposes of their undertaking the following lands which have been already acquired by them (that is to say):— Confirmation of purchase of certain lands.

Lands in the city parish of Aberdeen and city and county of Aberdeen situate on the northern side of Guild Street being the premises numbered 72 74 76 and 78 in Guild Street aforesaid and including the premises of the Company known as the Station Hotel.

16. The Company may adapt furnish and use for the purpose of a hotel the whole or any part of the buildings erected on the lands referred to in the section of this Order of which the marginal note is "Confirmation of purchase of certain lands" and may from time to time sell feu or lease for any purpose such parts of the said lands or buildings as they may not require to occupy and may from time to time alter and adapt the said buildings as they may think fit for those purposes : Powers as to Station Hotel Aberdeen.

Provided that nothing in this Order shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon the said lands or buildings.

17. In settling any question of disputed purchase money or compensation payable under this Order the Court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and fourteen if in Compensation in case of recently altered buildings.



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A.D. 1915. — the opinion of such Court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Order.

Costs of  
arbitration in  
certain cases.

18. The tribunal to whom any question of disputed purchase money or compensation under this Order is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that the sheriff of the county in which the lands are situate in respect of which the claim has arisen may permit any claimant after seven days' notice in writing to the Company to amend the statement of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause (such error mistake or cause to be established to the satisfaction of the sheriff after hearing the Company if they object to the amendment) and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such sheriff may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation (Scotland) Act 1845 either contained or was endorsed with a notice of the effect of this section.

Single arbi-  
ter.

19. In all cases of disputed compensation arising under this Order in respect of land to be taken compulsorily or otherwise which fall to be determined under the provisions of the Lands Clauses Acts it shall unless the Company and the other party or parties to the dispute concur in the appointment of a single arbiter in terms of such Acts be in the power of the Company or such other party or parties to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to



have the same determined by arbiters oversman sheriff or jury A.D. 1915.  
acting under the said Acts The said arbiter upon appointment  
shall be deemed to be a sole arbiter within the meaning of the  
Lands Clauses Acts and the provisions of those Acts with  
regard to arbitration shall apply accordingly and the arbiter  
shall notwithstanding anything contained in the said Acts deter-  
mine the amount of expenses in the arbitration and such  
determination shall be final The remuneration of the said  
arbiter shall failing agreement be fixed by the Secretary for  
Scotland.

20. Persons empowered by the Lands Clauses Acts to sell Owners may  
and convey or dispose of lands may if they think fit subject to grant servi-  
the provisions of those Acts and of this Order and according to tudes &c.  
their estate and interest therein grant to the Company any  
servitude right or privilege (not being a servitude right or  
privilege of water in which persons other than the grantors  
have an interest) required by them for the purposes of this  
Order in over or affecting any such lands and the provisions of  
the said Acts with respect to lands and feu duties or ground  
annuals so far as the same are applicable in this behalf shall  
extend and apply to such grants and to such servitudes rights  
and privileges as aforesaid respectively.

21. And whereas lands have from time to time been Power to  
purchased or acquired by the Company adjoining or near to lease lands  
railways or stations belonging to the Company but such lands &c.  
are not immediately and may not hereafter be required for the  
purposes of the Company and it is expedient that further  
powers should be conferred upon the Company with respect to  
such lands Therefore notwithstanding anything contained in  
the Lands Clauses Consolidation (Scotland) Act 1845 or in any  
other Act or Order with which that Act is incorporated the  
Company shall not be required to sell or dispose of any such  
lands or any lands acquired under the powers of this Order  
which may not immediately be required for the purposes of the  
Company but may retain hold or use or may lease or otherwise  
dispose of the same.

22. The quantity of land to be taken by the Company Lands for  
under the powers of this Order by agreement for the extra- extra-  
ordinary purposes of their undertaking mentioned in the ordinary  
Railways Clauses Consolidation (Scotland) Act 1845 shall not purposes.



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Period for compulsory purchase of lands by Company.

23. The powers for the compulsory purchase of lands by the Company under or for the purposes of this Order shall cease after the expiration of three years from the passing of this Order.

PART IV.

FINANCIAL PROVISIONS.

Company may apply funds and raise additional capital.

24. The Company may apply towards the purposes of this Order and the general purposes of their undertaking properly chargeable to capital any money which they are already authorised to raise and which may not be required by them for the purposes for which the same was authorised to be raised and they may subject to the provisions of this Order and of Part II. of the Companies Clauses Act 1863 raise for the purposes of this Order and other purposes of and connected with their undertaking any additional capital not exceeding in the whole three hundred thousand pounds by the issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of those methods respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth part of the amount of such share shall have been paid in respect thereof and the capital so raised by the Company shall form part of the capital of the Company.

Preferred and deferred converted ordinary stock.

25. The Company may by resolution after the creation of any ordinary shares or stock under the powers of this Order and before the issue thereof convert the same into equal nominal amounts of Great North of Scotland Railway preferred converted ordinary stock and Great North of Scotland Railway deferred converted ordinary stock to form part of and rank with the existing preferred converted and deferred converted ordinary stocks of the Company and the provisions of the Great North of Scotland Railway Act 1897 with respect to preferred ordinary stock and deferred ordinary stock shall



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mutatis mutandis apply to any ordinary shares or stock created and converted under the powers of this Order. A.D. 1915.

26. In order to make equal the aggregate amounts of the preferred and deferred converted ordinary stocks of the Company as existing immediately before the passing of the Act confirming this Order the Company may (in addition to any other powers of creating and issuing capital conferred by this Order) subject to the provisions of Part II. of the Companies Clauses Act 1863 and of this section create and issue preferred converted ordinary stock to the nominal amount of one hundred and two thousand eight hundred and twenty-two pounds.

Power to  
issue further  
amounts of  
preferred  
converted  
ordinary  
stock.

All preferred converted ordinary stock created and issued under the powers of this section shall form part of and rank *pari passu* with the existing preferred converted ordinary stock of the Company and the provisions of the Great North of Scotland Railway Act 1897 with respect to preferred ordinary stock shall apply to any preferred converted ordinary stock so created and issued.

27. The new shares or stock issued under the powers of this Order shall in proportion to the aggregate amount thereof from time to time held by the same person at the same time entitle the respective holders thereof to the same dividends and profits and confer on them the like qualifications and the like right of voting (if any) as the like amount of existing shares or stock of the Company of the same class or description.

Qualification  
of new shares  
or stock.

28. The shares or stock to be created under the powers of this Order shall be entitled to the preferential dividend (if any) which may be attached thereto by the Company and the powers conferred by the Railway Companies (Accounts and Returns) Act 1911 with respect to the declaration and payment of interim dividends shall apply with respect to such preferential dividend. If the profits divided in respect of the first half of any financial year be insufficient to pay any such preferential dividend as aforesaid for such half-year in full the deficiency shall be made up out of the profits of the second half-year (if any) available for such dividend but no deficiency of dividend on the preference shares or stock to be created under the powers of this Order for any financial year shall be made up out of the profits of any subsequent year or out of any other funds of the Company.

Extent of  
preferential  
dividends.



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Power to  
issue second  
debenture  
stock in lieu  
of raising  
additional  
capital.

29.—(1) Subject to the provisions of this Order the Company may in lieu of raising the whole or any part of the additional capital by this Order authorised to be raised by the creation and issue of new ordinary shares or stock or new preference shares or stock create and issue debenture stock (to be called second debenture stock) subject to the provisions of Part III. of the Companies Clauses Act 1863 as varied by subsections (2) and (3) of this section to a nominal amount not exceeding the amount of such additional capital for the time being unissued.

(2) The second debenture stock shall bear interest at such rate or respective rates per centum per annum as may be determined by the directors of the Company at the time of the issue of any amount thereof and shall rank after—

- (A) The existing debenture stock of the Company;
- (B) Any debenture stock which shall after the passing of the Act confirming this Order be issued under the powers of any previous Act or Order or of the sections of this Order of which the marginal notes are respectively “Debenture stock in respect of new borrowing powers” and “Debenture stock in respect of capitalised value of feu duties”; and
- (c) Any debenture stock which may be issued under the powers of any future Act or Order authorising the issue of debenture stock ranking in priority to the second debenture stock or *pari passu* with any debenture stock ranking in priority to the second debenture stock

and *pari passu* with any further amount of second debenture stock which may be authorised by any future Act or Order.

(3) The interest on the second debenture stock shall rank after the interest on the debenture stock (A) (B) and (c) referred to in sub-section (2) of this section and after the interest on any mortgages granted or (except as otherwise provided by any future mortgage) to be granted by the Company and *pari passu* with the interest on any such further amounts of second debenture stock as aforesaid but (subject to the provisions of the Acts or Orders under which such mortgages as aforesaid were or may be respectively granted) shall have priority over all principal moneys secured by such mortgages The holders of



second debenture stock shall not as among themselves be entitled to any preference or priority. A.D. 1915.

(4) Notwithstanding anything contained in the section of this Order of which the marginal note is "Company may apply funds and raise additional capital" the amount of additional capital which the Company may raise under the powers of that section shall be reduced by the nominal amount of any second debenture stock which the Company shall for the time being have created and issued under the powers of this section in lieu of creating and issuing new ordinary shares or stock or new preference shares or stock under the powers of the said section of this Order.

(5) Notice of the effect of sub-sections (2) and (3) of this section shall be endorsed on all mortgages granted after the passing of the Act confirming this Order and on all certificates of second debenture stock.

30. The Company may borrow on mortgage of the undertaking in respect of so much of the additional capital by this Order authorised as is raised by the issue of shares or stock and not by the issue of second debenture stock any sum not exceeding in the whole one-third of the amount so raised but no such sum as aforesaid shall be borrowed until shares for so much of the instalment of capital in respect of which it is to be borrowed as is to be raised by means of shares are issued and accepted and one-half thereof is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares for the whole of such portion of capital have been issued and accepted and that one-half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof or until stock for one-half of so much of such portion of capital as is to be raised by means of stock is fully paid up and the Company have proved to such sheriff as aforesaid before he so certifies that such shares or stock (as the case may be) were issued and accepted and to the extent aforesaid paid up bona fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as such portion of capital is raised by shares that such persons or

Power to  
borrow.



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A.D. 1915. — their executors administrators successors or assigns are legally liable for the same and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

Saving  
priority of  
existing  
mortgages.

31. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament or Order before the passing of the Act confirming this Order and subsisting at the passing thereof shall during the continuance of such mortgages and as regards the undertaking comprised in and assigned by such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over all mortgages to be granted by virtue of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Debenture  
stock in  
respect of  
new borrow-  
ing powers.

32. The Company may in respect of the powers conferred by the section of this Order of which the marginal note is "Power to borrow" create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as varied by this Order.

Debenture  
stock in  
respect of  
capitalised  
value of feu  
duties.

33. Upon the passing of the Act confirming this Order there shall be created by virtue of this Order and without any further or other authority debenture stock to the amount of sixty-two thousand five hundred pounds being the capitalised value of the annual feu duties and ground annuals in consideration of which the Company have from time to time purchased lands and the Company may issue the said stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as varied by this Order.

As to inter-  
est on de-  
benture  
stock.

34. Notwithstanding anything contained in the Companies Clauses Act 1863 the interest of all debenture stock created by virtue of this Order or created and issued by the Company at any time after the passing of the Act confirming this Order (other than second debenture stock) shall rank *pari passu* with the interest on all mortgages at any time after the passing of the Act confirming this Order granted by the Company and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all such mortgages and on all certificates of debenture stock other than second debenture stock.



35.—(1) Section 15 (Provisions of Company's previous Acts or Orders as to appointment of a receiver or judicial factor) of the Great North of Scotland Railway Order 1909 is hereby repealed but subject and without prejudice to any appointment of a receiver or judicial factor or proceedings taken under or by virtue of the provisions of the said section and in force or pending at the passing of the Act confirming this Order.

A.D. 1915.  
For appointment of a judicial factor.

(2) The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole.

36. All moneys raised by the Company under this Order whether by shares or stock debenture stock or borrowing shall be applied to the purposes of this Order and to the general purposes of the Company to which capital is properly applicable.

Application of moneys.

37. If any money is payable to a holder of shares or stock in the Company being a minor idiot or lunatic the receipt of his tutor or curator or curator bonis shall be a sufficient discharge to the Company.

Receipt in case of persons not sui juris.

38. No interest or dividend shall be paid out of any share or loan capital which the Company are by this Order or any Act or Order authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Order shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.

Interest not to be paid on calls paid up.

39. The Company shall not out of any money by this Order authorised to be raised pay or deposit any sum which by any General Order for the regulation of proceedings under the Private Legislation Procedure (Scotland) Act 1899 or any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to the Secretary for Scotland for a Provisional Order or to Parliament for the purpose of obtaining an Act

Deposit for future Orders or Bills not to be paid out of capital.



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A.D. 1915. — authorising the Company to construct any railway or to execute any other work or undertaking.

Company  
may issue  
redeemable  
preference  
shares or  
stock or  
redeemable  
debenture  
stock.

40.—(1) The directors of the Company may from time to time notwithstanding the provisions of any Act or Order relating to the Company and without any further authority than is given by this section raise—

(A) By the issue of redeemable preference shares or stock any portion of the capital which the Company are or may be authorised whether under this Order or otherwise to raise as preference capital;

(B) By the issue of redeemable debenture stock any money which the Company are or may be authorised whether under this Order or otherwise to raise by the issue of debenture stock

subject to the condition that such redeemable preference shares or stock and redeemable debenture stock shall be redeemed by the Company at such times and in such manner and on such terms and conditions as shall be expressed on the certificates of such shares or stock or debenture stock.

(2) It shall be lawful for the directors of the Company from time to time to issue—

(A) New shares or new stock whether ordinary or preference and as regards any preference shares or stock whether redeemable or otherwise for a nominal amount not exceeding the nominal amount of any redeemable preference shares or stock which shall have been redeemed; or

(B) New debenture stock whether redeemable or otherwise for a nominal amount not exceeding the nominal amount of any redeemable debenture stock which shall have been redeemed

or to issue any such new shares or stock or new debenture stock for the purposes of redemption of or in substitution for any such redeemable preference shares or stock or redeemable debenture stock (as the case may be).

(3) The directors of the Company may from time to time set apart out of income after providing for the payment of interest on any mortgages bonds or debenture stock or preference shares or stock of the Company such sums as they may consider



necessary for the purpose of redeeming any redeemable preference shares or stock or redeemable debenture stock which they may desire to redeem otherwise than by the issue of new shares or stock or debenture stock under the powers of this section. A.D. 1915.

41. Notwithstanding anything in this Order contained the Company shall not under the powers of this Order raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Company not to raise or borrow money during continuance of war.

42. The directors of the Company may with respect to the whole or any portion of fully paid-up stock or share capital or debenture stock created or to be created by the Company (whether issued as redeemable shares or stock or redeemable debenture stock or otherwise) and subject to such regulations as may from time to time be made by the directors issue under the common seal of the Company warrants and certificates (hereinafter severally referred to as a "stock warrant to bearer" and a "debenture stock certificate to bearer") stating that the bearer of the warrant or certificate is entitled to the stock or shares or the debenture stock (as the case may be) therein specified and may provide by coupons whether attached to the warrant or certificate or not for the payment of dividends or interest as the case may be on the stock or shares or debenture stock specified in the warrant or certificate: Power to issue stock or share warrants and debenture stock certificates to bearer.

Provided always that nothing in this Order contained shall empower the directors to issue to the holder of any stock shares or debenture stock issued prior to the passing of the Act confirming this Order a stock warrant to bearer or a debenture stock certificate to bearer (as the case may be) for such stock shares or debenture stock without first obtaining his consent in writing.

43. A stock warrant to bearer or debenture stock certificate to bearer shall entitle the bearer thereof to the stock or shares or debenture stock therein specified and such stock shares or debenture stock may be transferred by delivery of the warrant or certificate but not otherwise. Effect of stock warrant and debenture stock certificate to bearer.

44. On the issue of a stock warrant to bearer or a debenture stock certificate to bearer in respect of any portion of stock or share capital or debenture stock the Company instead of making Entries in register on issue of stock warrant or debenture



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stock certi-  
ficate to  
bearer.

in the register of shareholders or shareholders' address book or in the register of stockholders or of debenture stockholders with reference to such portion of stock or share capital or debenture stock the entries provided for by the Companies Clauses Consolidation (Scotland) Act 1845 or by the Companies Clauses Act 1863 or any other Act or any Order relating to the Company shall strike out of such register of shareholders shareholders' address book or register of stockholders or of debenture stockholders (as the case may be) the name of the person (if any) then entered therein as holding such stock shares or debenture stock (as the case may be) and the other particulars with reference to such stock shares or debenture stock contained in such register or address book and shall enter in the register the following particulars:—

- (i.) The fact of the issue of the stock warrant to bearer or debenture stock certificate to bearer;
- (ii.) A statement of the amount of the portion of stock or share capital or debenture stock (as the case may be) specified in the warrant or certificate;
- (iii.) The date of the issue of the warrant or certificate.

The provisions of the Companies Clauses Consolidation (Scotland) Act 1845 as to the register of holders of shares and as to certificates of shares and transfer and transmission of shares and of the Companies Clauses Act 1863 as to certificates and registration of debenture stock shall not apply in the case of a stock warrant to bearer or a debenture stock certificate to bearer respectively.

Registration  
of holders of  
stock shares  
or debenture  
stock on sur-  
render of  
warrant or  
certificate.

45. The bearer of a stock warrant to bearer or a debenture stock certificate to bearer shall on—

- (A) Surrendering for cancellation the warrant or certificate with all coupons issued in respect thereof and for the time being outstanding;
- (B) Complying with such regulations as may from time to time be made under the common seal of the Company for the purpose of enabling the Company to ascertain the name address and description of the bearer and for obtaining a specimen of his signature;
- (C) Paying to the Company all stamp or other Government duties (if any) which may be payable by the Company in consequence of the surrender; and



(D) Paying to the Company such fee as the Company may A.D. 1915.  
prescribe not exceeding five shillings

be entitled to have his name entered in the register of stockholders or shareholders or in the register of debenture stockholders (as the case may be) and to receive a certificate for the stock or shares or debenture stock specified in such stock warrant to bearer or debenture stock certificate to bearer and the Company shall be responsible for any loss incurred by any person by reason of the Company entering in the register the name of any bearer of a stock warrant to bearer or a debenture stock certificate to bearer and issuing a certificate in respect of the portion of stock or share capital or debenture stock specified in such stock warrant to bearer or debenture stock certificate to bearer without the warrant or certificate with coupons as aforesaid being surrendered and cancelled.

46. The bearer of a stock warrant to bearer shall subject to the provisions of this Order be deemed to be a stockholder or shareholder of the Company for all purposes Provided that the stock or shares specified in a stock warrant to bearer shall not be taken into account in determining the qualification of the bearer of such warrant to be a director of the Company.

As to rights  
of holders of  
stock war-  
rants to  
bearer.

47.—(1) Any bearer of a stock warrant to bearer desiring— Voting cer-  
tificates.

(A) To attend or vote (whether personally or by proxy)  
or exercise any of the rights of a stockholder or  
shareholder at any meeting of the Company; or

(B) To make or be a party to making a requisition for  
an extraordinary meeting of the Company

in respect of the stock or shares specified in such warrant shall three days at least before the date appointed for the meeting in the first case and before the requisition is lodged at the office of the Company in the second case deposit such stock warrant at the office of the Company together with a statement in writing of his name and address.

(2) Upon such deposit as aforesaid being made the Company shall issue to the person making the same a certificate (hereinafter referred to as “a voting certificate”) stating the name and address of the bearer of the stock warrant to bearer so deposited or (at his option) of some person (being a stockholder or shareholder of the Company) to be nominated by him as



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A.D. 1915. his proxy and the amount of stock or the number of shares specified in such warrant.

(3) A voting certificate shall entitle the person named therein—

(A) To attend and vote and exercise any of the rights of a stockholder or shareholder at any meeting of the Company held while such voting certificate shall be outstanding; and

(B) To make or be a party to making a requisition for an extraordinary meeting of the Company or to call or be a party to calling an extraordinary meeting of the Company

in like manner and subject to the like conditions in all respects as if such person were the registered holder of the stock or shares specified in the voting certificate but no such rights as aforesaid shall be exercised in respect of the stock or shares specified in a stock warrant to bearer otherwise than in accordance with the provisions of this section or except—

(i.) While the voting certificate issued upon the deposit of such stock warrant shall be outstanding; and

(ii.) Upon production of such voting certificate whenever so required by a director or officer of the Company.

(4) Upon the surrender to the Company at any time of a voting certificate the Company shall deliver up to the person surrendering such certificate the stock warrant to bearer in respect of which such voting certificate was issued and shall forthwith effectually cancel such voting certificate but until such surrender any stock warrant to bearer deposited with the Company pursuant to the provisions of this section shall remain so deposited and during such period of deposit the Company shall be responsible for the loss of or any damage to such stock warrant to bearer.

(5) Except as expressly provided by this section a voting certificate shall not confer any rights upon the person named therein or other the holder thereof or be deemed to constitute any evidence as to the ownership of the stock or shares specified therein.

(6) The Company shall not be responsible for ascertaining that the holder of a stock warrant to bearer or of a voting



certificate is lawfully entitled to the stock or shares specified in such warrant or to such voting certificate or be liable to make good any loss incurred by any person by reason or in consequence of any such voting certificate being issued to the holder of any such warrant or of any such warrant being delivered up to the holder of any such voting certificate. A.D. 1915.

48. No person shall as bearer of any stock warrant to bearer be entitled to exercise any of the rights of a stockholder or shareholder of the Company (save as hereinbefore expressly provided in respect of meetings) without producing the warrant and stating his name and address. Stock warrants to be produced.

49. Any notice or intimation required to be given to stockholders or shareholders of the Company under the provisions of the Companies Clauses Consolidation (Scotland) Act 1845 or any Act amending the same or any other Act or any Order relating to the Company may in the case of the bearers of stock warrants to bearer be given by advertising the notice once in a newspaper published in Aberdeen and once in the same newspaper in the next week following the publication of the first advertisement. Provided that the second of such advertisements shall be inserted within the period (if any) prescribed for the giving of such notice. As to notices to bearers of stock warrants.

50. If and so often as any application shall be made to the Secretary for Scotland for an Order or to Parliament for an Act affecting the rights of the holders of any class of debenture stock which shall for the time being have been issued by the Company and be outstanding and in respect whereof or any part whereof debenture stock certificates to bearer shall be then outstanding the following provisions shall have effect (that is to say):— Provision in case of applications for Acts or Provisional Orders affecting rights of holders of debenture stock.

(1) In this section the following expressions shall have the following meanings unless repugnant to the context:—

“The debenture stock” means the debenture stock of such class as last aforesaid for the time being issued and outstanding;

“Bearer certificates” means the debenture stock certificates to bearer for the time being issued in respect of the debenture stock or any part thereof and outstanding;

“The bearers” means the bearers for the time being of the bearer certificates and “bearer” means one of the bearers;



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“Registered holders” means the registered holders for the time being of any debenture stock ;

“Meeting” means a meeting of registered holders and bearers under this section ;

“Debenture voting certificate” means a voting certificate issued in pursuance of this section.

(2) Any meeting convened for the purpose of approving any such application as aforesaid shall so far as the bearers are concerned be duly convened by advertising the notice convening the same once in a newspaper published in Edinburgh and once in the same newspaper in the next week following the publication of the first advertisement. Provided the same shall be convened for a date not less than fourteen days or more than thirty days after the last insertion of the advertisement thereof in such newspaper. It shall also be lawful for but not obligatory on the Company to advertise such notice as last aforesaid in any other newspaper or newspapers either in the United Kingdom or abroad. Every such advertisement as aforesaid shall state that the bearers may not less than forty-eight hours before the time for holding the meeting or any adjournment thereof deposit at the head office of the Company their bearer certificates and obtain debenture voting certificates in respect thereof.

(3) For the purposes of this section the bearer of a bearer certificate shall be treated as a legal holder thereof whether such bearer shall or shall not be the owner thereof and for all the purposes of the meeting or any adjournment thereof the bearer of a debenture voting certificate issued under this section in respect of a bearer certificate shall be deemed to be the bearer of such bearer certificate.

(4) Prior to convening a meeting the Company shall make such arrangements as will entitle any bearer who shall not less than forty-eight hours before the time for holding such meeting or any adjournment thereof deposit a bearer certificate at the head office of the Company to receive from the Company—

(A) A receipt for the bearer certificate so deposited such receipt to be in such form as (subject to the provisions of the next succeeding subsection) will entitle the bearer thereof to have the bearer certificate in respect of which the same was given delivered



to him in exchange therefor by the Company whether such bearer be or be not in fact the true owner of such bearer certificate; and A.D. 1915.

(B) A debenture voting certificate; which receipt and debenture voting certificate shall be signed by the secretary or manager of the Company and shall specify the denoting number of the bearer certificate so deposited and the amount of the debenture stock comprised therein. The production of a debenture voting certificate shall be the sole evidence of the right of any person to vote at the meeting or any adjournment thereof but except as provided by sub-section (3) of this section no such certificate shall confer any title on the holder thereof to the bearer certificate or to the debenture stock referred to therein.

(5) A bearer certificate deposited as last aforesaid shall be deposited subject to (amongst others) the condition that the same shall be retained by the Company until the meeting has been held or abandoned and the receipt given by the Company therefor and the debenture voting certificate issued by the Company in respect thereof have been delivered to the Company. Provided that the holder of a debenture voting certificate shall be entitled at any time before the holding of the meeting or any adjournment thereof to receive back from the Company the bearer certificate in respect whereof such voting certificate was issued upon delivering to the Company such voting certificate and the receipt given by the Company for such bearer certificate and in that event such holder shall not be entitled to vote at the meeting or any adjournment thereof in respect of such voting certificate.

51. If a stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate is lost or destroyed then upon— Loss or destruction of warrant certificate coupon or voting certificate.

- (A) Proof to the satisfaction of the directors of the ownership of such lost or destroyed warrant or debenture stock certificate or coupon or voting certificate and of the loss or destruction thereof;
- (B) The giving of such indemnity to the Company and the directors as the directors deem adequate;
- (C) Payment of all stamp and other Government duties (if any) payable in respect of the new warrant or certificate or coupon; and
- (D) Payment to the Company of a fee of five shillings



A.D. 1915. a new stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate as the case may be in lieu of the warrant debenture stock certificate coupon or voting certificate so lost or destroyed shall be issued by the Company and in the case of the issue of a new stock warrant to bearer or debenture stock certificate to bearer or coupon an entry of such issue shall be made by the secretary in the register of stockholders or shareholders or register of debenture stockholders.

As to joint holders.

52. If several persons be or claim to be jointly entitled to the stock or shares or debenture stock specified in a stock warrant to bearer or debenture stock certificate to bearer then as between the Company on the one hand and such persons on the other hand—

(A) One only of such persons shall be deemed the sole proprietor of such stock or shares or debenture stock; and

(B) In case of any dispute between such persons such one of them as shall be the actual holder of the stock warrant to bearer or debenture stock certificate to bearer shall be deemed such sole proprietor.

Trustees unless expressly authorised not empowered to hold bearer securities.

53. A trustee unless authorised by the terms of his trust shall not apply for or hold a stock warrant to bearer or debenture stock certificate to bearer issued under the authority of this Order but nothing in this section shall impose upon the Company any obligation to inquire whether the person applying for a stock warrant to bearer or debenture stock certificate to bearer is or is not a trustee or being a trustee is or is not so authorised as aforesaid or subject them to any liability in the event of their issuing to a trustee a stock warrant to bearer or debenture stock certificate to bearer.

Endorsement of provisions on warrants and certificates to bearer.

54. A copy of the sections of this Order of which the marginal notes are respectively “Registration of holders of stock shares or debenture stock on surrender of warrant or certificate” “Voting certificates” and “As to notices to bearers of stock warrants” shall be endorsed on every stock warrant to bearer and a copy of the said section of this Order of which the marginal note is “Registration of holders of stock shares or debenture stock on surrender of warrant or certificate” shall be endorsed on every debenture stock certificate to bearer which shall be issued by the Company.



PART V.

A.D. 1915.

MISCELLANEOUS PROVISIONS.

55. Nothing in this Order contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels.

Provision as  
to general  
Railway  
Acts.

56. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the Act confirming the same or otherwise in relation thereto shall be paid by the Company.

Costs of  
Order.

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